

The United Kingdom of Great Britain and Northern Ireland is a longstanding constitutional monarchy with a democratic, parliamentary government. Some central government powers have been devolved to locally elected bodies in Wales, Scotland, and Northern Ireland. The judiciary is independent, but Parliament may supercede its decisions through legislation.

Throughout the country, police forces are under the effective control of civilian officials. The intelligence agency MI-5 has the authority to act in support of other law enforcement agencies in the prevention and detection of serious domestic crime, but information collected by that agency generally is not admissible as evidence in trials. The Royal Ulster Constabulary (RUC) in Northern Ireland has a complex and controversial role, due to the special and difficult circumstances in the region with respect to law and order. In some areas of Northern Ireland, because of the continuing threat of violence, army units operate to reinforce the RUC. Individual members of UK police forces committed human rights abuses in some instances.

A highly developed, diversified, market-based economy with extensive social welfare services provides most residents with a high standard of living. Higher than average unemployment rates prevail among certain demographic groups, including youth and racial minorities, and in Northern Ireland, among Catholics.

The Government generally respected the human rights of its citizens, and the law and judiciary provide effective means of dealing with individual instances of abuse. Individual members of the police occasionally abused

detainees. Prison conditions, including overcrowding and the number of prison suicides, also remained problems. There are some limits on freedom of assembly and association related to the security situation in Northern Ireland. The Government continued to take steps to combat violence against women. Societal discrimination against women, nonwhite minorities, and the Traveller (nomadic) community are problems, as are child abuse and occasional societal violence against minorities. Trafficking in women is an acknowledged problem. In October the Human Rights Act came into effect, allowing for the enforcement of provisions of the European Convention on Human Rights in UK courts.

In Northern Ireland, power was devolved in December 1999 under the terms of the Good Friday Agreement, which established local government institutions, including a legislative assembly and a power-sharing executive. In February 2000, due to the lack of progress on weapons decommissioning by republican paramilitary groups, the Ulster Unionist Party (UUP) threatened to withdraw from the executive in protest. The Secretary of State for Northern Ireland suspended the institutions in February in order to prevent UUP withdrawal. In May, after the Provisional Irish Republican Army (PIRA) pledged to put its weapons completely and verifiably beyond use, the Government lifted the suspension, allowing devolution to resume. In October Executive First Minister David Trimble of the UUP refused to allow executive ministers of the republican Sinn Fein Party to participate in meetings of the North-South Ministerial Council, because there had been no progress on the weapons issue. At year's end, Sinn Fein ministers were challenging Trimble's move in court.

The Northern Ireland Human Rights Commission (HRC) initiated a comprehensive consultation process on a bill of rights specific to Northern Ireland, as mandated by the Good Friday Agreement. The commission also provides

legal advice and assistance to citizens. The HRC Chief Commissioner urged the Government to grant the commission additional funding and enhanced powers. Under the terms of its creation in 1999, the HRC can make the case for such changes in a report to the Government in 2001.

The police force in Northern Ireland has had a complex and controversial role and under some circumstances continues to rely on support from British Army units. Approximately 13,000 British troops were stationed in Northern Ireland, the lowest number since the early 1970's. The Good Friday Agreement mandated wide-ranging reforms in policing and criminal justice with the aim of developing fair, effective, and representative law-enforcement institutions that have the confidence of all parts of the community. In November Parliament passed a Northern Ireland Police Bill based on the recommendations of the Independent Commission on Policing in Northern Ireland (commonly known as the Patten Commission). In March the criminal justice review mandated by the Good Friday Agreement publicly proposed as part of its findings reforms in the Northern Ireland prosecution system and in the procedures for making judicial appointments; its recommendations are expected to be implemented beginning in 2001.

In accordance with the Good Friday Agreement, the Government in September completed the staged release of 433 prisoners affiliated with paramilitary organizations that maintain a complete and unequivocal cease-fire--although "punishment" attacks continued in areas under the influence of these groups. Several paramilitary dissident groups in Northern Ireland committed acts of violence aimed at disrupting the peace process. During the year, over 250 violent sectarian attacks took place in Northern Ireland. Loyalists carried out 86 punishment

shootings and 72 punishment beatings, while republicans carried out 50 punishment shootings and 54 beatings.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

There were no reports of political or other extrajudicial killings by the Government.

The Police Complaints Authority (PCA), an independent watchdog organization, concluded its inquiry into the police investigation of the death of Roger Sylvester, a black man who died in 1999 after being restrained by police officers. The PCA certified that the circumstances had been investigated to its satisfaction and forwarded an investigation report to the Crown Prosecution Services (CPS). In November the CPS ruled that there was insufficient evidence to file criminal charges against the police officers involved in Sylvester's case. Sylvester's family called for an independent inquiry.

In December the CPS also ruled out filing criminal charges against police officers involved in the 1999 shooting death of Henry Stanley. Amnesty International expressed concern over the CPS decisions not to prosecute in the Sylvester and Stanley cases, which the organization considers "strong prima facie evidence" cases.

In May a London court set a February 2001 trial date for a police officer charged in the murder of James Ashley, who was shot and killed during a police raid on his home in 1998. In connection with the case, four other police officers face trial.

According to the PCA's Annual Report, deaths in police custody fell to 47 during the 12 months ending in March 2000, compared with 65 during the same period the previous year. The report states that 11 of the deaths occurred because of natural causes, 9 were due to alcohol or drugs, and 12 were suicides. The PCA supports the abolition of the offense of "being drunk and incapable" and recommends that drunks be dealt with by nurses and paramedics rather than by the police. According to the Home Office, the provisional number of deaths in police custody in England and Wales during the calendar year was 47; in Scotland it was 3.

There also were a number of deaths in custody in prison due to suicide and natural causes (see Section 1.c.).

The Northern Ireland Human Rights Commission is assisting the family of Jim McDonnell in the formal inquest into his death in 1996 in Northern Ireland's Maghaberry Prison. Fellow prisoners charged that prison staff beat him.

In April the European Court of Human Rights declared admissible 4 cases brought by the families of 12 individuals killed by the security forces (or with alleged security force collusion) in Northern Ireland in the 1980's and 1990's. The families contend that the Government violated, inter alia, Article 2 (the right to life) of the European Convention on Human Rights and charge that the deceased were killed unjustifiably by the State or its agents through excessive use of force and that the State failed to comply with its procedural obligations by not effectively investigating the deaths. One of the cases had earlier been included in an inquiry into the use of lethal force (including allegations that the authorities sanctioned a shoot-to-kill policy) conducted in 1984-87 by John Stalker.

In 1998 the Government opened a new judicial inquiry, presided over by a panel of three prominent judges from the UK and other Commonwealth countries, to establish the facts of the events of January 30, 1972, in Northern Ireland--"Bloody Sunday"--when 13 unarmed civil rights demonstrators in Londonderry were killed by British soldiers, but for which no member of the security forces was ever held accountable. The inquiry spent 2 years gathering testimony and evidence from other victims, journalists, and government officials. Formal hearings began in March in Londonderry. Following the August resignation from the panel of Sir Edward Somers due to personal reasons, the Government appointed John Toohey, a former judge on the Australian High Court. The disruption resulted in a 2-month delay in the proceedings, which resumed in November. The inquiry is expected to hear testimony from approximately 800 to 1,000 witnesses and continue for another 2 to 3 years.

David Copeland was convicted in June of a series of bombings in London in 1999 and sentenced to six life sentences. The bombings, motivated by racism and homophobia, killed three people.

Under the criteria of the 1998 Northern Ireland (Sentences) Act, the Government determined that the main republican and loyalist paramilitary groups were abiding by a cease-fire. Despite the fact that the groups are considered to be maintaining a cease-fire, killing and wounding by both republican and loyalist groups in Northern Ireland continued. The groups that the Government determined were not maintaining a total and unequivocal cease-fire are the Real IRA (RIRA), the Continuity IRA, the Irish National Liberation Army (INLA), the Red Hand Defenders, and the Orange Volunteers.

The PIRA was blamed widely for three May killings, including the killing of a dissident republican activist. While the PIRA did not comment or deny involvement, media reports attributed these crimes to the group.

More than 10 deaths in Northern Ireland during the year were attributed to feuding among the principal loyalist paramilitary groups. Victims included reputed members of key loyalist paramilitaries, including Ulster Volunteer Force (UVF) leader Richard Jameson.

In August the feud between the UFF/UDA and the UVF intensified when a display of strength by the UFF/UDA on the Shankill Road in Belfast led to gunfire and attacks on houses. During the following week, Bobby Mahood and Jackie Coulter (the latter connected with the UFF) were shot and killed, as was Sam Rocket, a UVF supporter. In August the Government revoked the release of Johnny Adair, a leader of the loyalist UFF who had benefited from early release in October 1999, for his role in the violent feuding. Subject to the approval of the Sentencing Board, the Government is recommending that Adair serve the duration of his original prison term. In December the factions announced a "truce."

Although a number of suspects were questioned, no one was charged with the murder of lawyer Rosemary Nelson, who died in a car bomb attack in 1999. The Red Hand Defenders, a loyalist splinter group, claimed responsibility, and human rights groups continued to express concern about alleged police collusion in the murder. Nelson, known for taking on high-profile civil rights cases, claimed as early as 1997 that RUC officers made death threats against her.

In December 1999, a coalition of six human rights organizations stated that Nelson's death constituted a failure by the Government to meet its international

obligations to ensure that lawyers are able to perform their jobs without fear for their safety. These organizations called for a full public inquiry into all the circumstances of Nelson's murder. In his April 2000 report to the U.N. Commission on Human Rights, the Special Rapporteur on the Independence of Judges and Lawyers expressed concern over the extent and thoroughness of the official investigation into Nelson's complaints of RUC threats.

Cognizant of the controversy surrounding Nelson's case, in 1999 the RUC appointed Deputy Chief Constable of Norfolk Colin Port to take over the investigation of the murder. Port's 80-member investigative team interviewed 7,000 potential witnesses. In March police made the first arrest of the case, questioning a man who was a member of the Royal Irish Regiment at the time of the murder; he was charged with an unrelated offense. In May the Independent Commission for Police Complaints (ICPC) ruled that there was "insufficient evidence" to discipline the RUC officers accused of threatening Nelson. In August Port appeared on the television program "Britain's Most Wanted" to appeal for individuals with information relating to the murder to come forward.

No one has been charged in the UK for the 1998 bombing in Omagh that killed 29 persons. The RIRA claimed responsibility for the bombing. While authorities have collected information that identifies individuals alleged to be responsible for the bombing, much of it cannot be used as evidence. In October news organizations identified the alleged perpetrators, which prompted complaints from victims' families that a future trial could be jeopardized. Witnesses who could make prosecution possible have been reluctant to come forward. Family members of victims have criticized Sinn Fein for refusing to assist in the police investigation. While over 20 suspects were detained, only 1, Colm Murphy, was charged (for aiding and abetting the crime) and faces trial in the Republic of Ireland.

In September a Belfast coroner conducted a public inquest into the Omagh bombing. Unlike inquests in England and Wales, coroner's courts in Northern Ireland do not reach verdicts apportioning blame, but instead make "findings" confined solely to the facts surrounding violent, sudden, or unexplained death. Human rights groups have argued in other inquests that this narrow definition shields wrongdoers, including soldiers and police officers, and unnecessarily keeps family members from learning the truth of the circumstances regarding their relative's death.

Human rights groups continued to call for an independent inquiry into the December 1997 killing of Billy "King Rat" Wright, leader of the Loyalist Volunteer Force, in the high security Maze Prison by members of INLA. The facts of the killing call into question the prison's security standards: The watchtower in the courtyard where the killing took place allegedly was unmanned at the time, the perpetrators had weapons smuggled to them, and they apparently had knowledge of Wright's whereabouts. The jury at the coroner's inquest in February 1999 stated that "person or persons unknown and undetected" were involved. In July the Government refused "on security grounds" to answer a parliamentary question about the identity the official in charge of the prison on the day of Wright's murder.

In June a Belfast coroner abandoned plans for an inquest into the 1997 death of Robert Hamill. Hamill's case received widespread attention because four RUC officers in a nearby vehicle allegedly did not act while Hamill was beaten to death by a mob. The coroner said that he feared that key witnesses would be in danger if they were called to give evidence. In 1999 one of the six suspects was acquitted of the killing but found guilty of a minor offense. The trial judge expressed concerns about the inaction of the police. Human rights groups argue that the RUC had intervened successfully in similar circumstances in the past. Moreover, they charge that the RUC's failure to

intervene made the identification and prosecution of the murderers more difficult. The police ombudsman was directing the police investigation at year's end. Irish Prime Minister Bertie Ahern called for an independent public inquiry. The family provided the Government with evidence that it says makes a definitive case for such an inquiry.

The investigation into the 1989 murder of defense attorney Patrick Finucane continued. Finucane was killed in front of his family by members of the Ulster Defense Association (UDA). Human rights organizations have alleged security force collusion in the murder. In July two RUC officers were arrested and questioned about the murder, which was being reviewed in a third round of independent investigations by the Commissioner of the Metropolitan Police, Sir John Stevens. In August the inquiry seized documents related to the case from the British Army. William Stobie was arrested in 1999 and charged with the murder, although in August the charges were reduced to aiding and abetting murder. Stobie has claimed he was an RUC informer at the time of Finucane's murder and said he warned police of a "hit" by the UDA, although it was unclear whether he knew Finucane was the target. Human rights organizations, the U.N. Special Rapporteur on the Independence of Judges and Lawyers, and Finucane's family continued to press the Government for an independent public inquiry into the killing. They cited the possible existence of new evidence that would support charges of collusion between government officials and loyalist paramilitary groups in Finucane's murder.

While British Army regulations normally bar from service those guilty of "serious crimes," Scots Guards Jim Fisher and Mark Wright continued to serve in their regiment, to which they were reinstated in 1998 after being convicted of and serving time in prison for the 1992 murder of Peter McBride. In 1999 McBride's family won a judicial review

against the British Army Board that sanctioned the soldiers' reinstatement. In November the board reaffirmed its decision, allowing the pair to remain in the service.

Former Chilean President Augusto Pinochet left the UK on March 2 after Home Secretary Jack Straw announced that he would not extradite Pinochet to Spain for alleged human rights abuses because he was too ill to stand trial.

b. Disappearance

There were no reports of politically motivated disappearances.

The Commission for the Location of Victims' Remains was established jointly by the British and Irish Governments in 1999 to facilitate the location of the remains of nine victims of IRA paramilitary violence from the 1970's. The commission succeeded in locating the remains of three persons in 1999, but suspended its work in May, pending the receipt of additional information from the IRA. Work had not resumed by year's end.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law forbids torture and other cruel, inhuman, or degrading treatment; however, individual members of the police occasionally abused detainees. Human rights organizations maintain that such abuse, while not widespread, is a matter of serious concern (see Sections 1.a. and 5). Detainees who claim physical mistreatment have the right to an immediate medical examination. A trial judge must examine such a claim. Confessions obtained by abusive treatment are not admissible in court, and judges can exclude even voluntary confessions.

Reports by official bodies and nongovernmental organizations (NGO's) have suggested that the public lacks

confidence in existing procedures for making complaints against the police. According to a February 2000 Council of Europe committee report, more complainants have been taking their cases to the civil courts rather than filing complaints. The report states that even where complaints are filed and point to likely police culpability, criminal or disciplinary action against police officers has been rare, and convictions or disciplinary action even rarer; in many cases, police officers under investigation took medical retirement. According to the report, of 36,731 complaints recorded in the 1996-97 period studied by the committee, only 141 resulted in legal or disciplinary action (latest statistics available). While accepting the need for reform of the complaint procedures, the Government disputed some of the conclusions reached in the report, pointing out that it omitted to mention over 1,000 disciplinary actions taken and the informal resolution of 32 percent of cases to the satisfaction of the complainants.

Following these reports, the Government has engaged in an ongoing process to reform the police complaints system. In 1999 the Government phased in new complaint procedures. Among other things, the new procedures instituted a formal written warning procedure in serious cases and lowered the burden of proof in civil misconduct proceedings. In May 2000, the Home Office published a consultation document based on two separate studies conducted by a management consulting firm and a human rights group. The paper recommended that complaints against the police be handled by a new body, whose name would better reflect its independent nature than the current Police Complaints Authority. It also recommended that the new body have the ability to independently investigate the most serious complaints, including deaths in custody. The Home Office, after receiving and incorporating feedback on its May paper, issued a further report in December on its proposed framework for a new

police complaints system, much of it based on the two groups' recommendations.

Two RUC officers, Michael Magowan and Darren James Neill, were convicted and imprisoned in May for the 1998 assault on 18-year-old Bernard Patrick Griffin. Griffin, a Catholic, was arrested, beaten, verbally abused, and threatened. Griffin was then charged with assault. The truth emerged when a third officer present, Andrew Lea, confessed to his superiors; Lea was fined \$1,600 (1,000 pounds). Magowan and Neill received 1- and 2-year sentences, respectively, and face RUC disciplinary charges of criminal conduct, which could result in dismissal.

The Police Ombudsman for Northern Ireland began operation in November. The ombudsman has extensive powers to investigate complaints in Northern Ireland filed against the police or referred by the RUC Chief Constable, the Police Authority of Northern Ireland, or the Secretary of State for Northern Ireland. The ombudsman is to supervise automatically cases involving death or serious injury and may investigate other cases. The ombudsman can recommend to the Director of Public Prosecutions (DPP) that charges be brought against officers, although the final decision rests with the DPP. The ombudsman can direct the Chief Constable to take disciplinary action against police officers. Unlike the ICPC, which must rely on the complaints and discipline branch of the RUC to provide investigators, the ombudsman has an independent investigative staff.

Prior to being replaced by the ombudsman in November, the ICPC received 2,036 complaints; in November and December the ombudsman received about 540 complaints. In addition 2,396 cases were passed on from the ICPC to the ombudsman. Of the 2,390 cases completed by both organizations during the year, 7 led to informal disciplinary action and 9 led to formal criminal charges.

Legislation implementing the 1999 Patten Report on Policing in Northern Ireland was enacted in November. The law changes the operational name of the RUC to the Police Service of Northern Ireland (PSNI), imposes hiring quotas to increase Catholic representation in the service (now only 8 percent of the total), and introduces new human rights standards and wider use of community policing practices. The law establishes a new policing board comprised of 9 public members and 10 political party representatives from the Assembly. The reform remains controversial. Chris Patten, author of the original recommendations, has endorsed the bill and urged full participation in the new institutions. However, the nationalist parties object to the bill for not strictly following all recommendations of the Patten Commission, while unionist critics argue that reforms will undermine the effectiveness of the police. By year's end, the impasse over implementation had not been resolved.

The Independent Assessor of Military Complaints continued to coordinate investigations into complaints of abuses committed by the Army in Northern Ireland. During the year, some 20 formal and 550 informal complaints were received; most involved allegations of verbal abuse or excessive helicopter flights adjacent to residential areas.

The police and military in Northern Ireland continued to use plastic bullets to quell civil disturbances. The Patten Commission recommended the use of plastic bullets "only as a last resort, short of the use of firearms" and recommended that the Government conduct research to find "an acceptable, effective and less potentially lethal alternative" to plastic bullets. The Government accepted these recommendations. New guidelines mandate that plastic bullets only be used to avert the risk of loss of life or serious injury; formerly, their use was sanctioned to protect property or to preserve the peace. During

disturbances in July, the police relied on water cannons to repel a disorderly crowd.

In total the security forces fired 25 plastic bullets during the year, compared with 111 in 1999. According to RUC rules, plastic bullets should be aimed below the rib cage; nevertheless, the use of plastic bullets in prior years resulted in 17 deaths and numerous head and upper body injuries. Plastic bullet use in Northern Ireland is criticized severely by human rights monitors, although the European Court of Human Rights ruled in 1984 that using them to quell serious riots did not contravene the European Convention on Human Rights. The U.N. Committee Against Torture, the European Parliament, and human rights NGO's have called for a ban on their use.

The Patten Commission recommended the closure "forthwith" of Northern Ireland's three holding centers used to detain and interrogate individuals suspected of terrorist offences. Human rights organizations have long called for their closure because of repeated complaints of police mistreatment during interrogations. One facility, at Castlereagh, was closed in 1999, and a second, Strand Road, was closed in September; the RUC contends that it cannot quickly close the third center, Gough, because it lacks the capacity in existing police stations to cope with the demands of questioning hundreds of terrorist suspects per year. Audio and video recordings are now made of all interrogations in the holding centers, and the number of complaints against the police by persons arrested under emergency legislation has diminished significantly.

The independent commissioner for holding centers in Northern Ireland made unannounced visits to holding centers in order to observe interrogations and interview detainees. The number of complaints, generally for verbal harassment or "technical assault," dropped substantially.

David Adams was assaulted during his arrest and initial incarceration at the Castlereagh interrogation center in 1994. In 1998 a Belfast court awarded Adams \$48,000 (30,000 pounds) for exemplary damages. Adams later was sentenced to 25 years for conspiracy to murder. Following the court decision on damages, an independent inquiry into Adams's treatment was initiated by the assistant chief constable of Strathclyde. On the basis of his report, the DPP declined to pursue charges against any of the officers involved. An application by Adams for judicial review of the DPP's decision was denied in June.

Police occasionally harassed Travellers and members of other minorities. Separate 1999 and 2000 reports pointed out that minorities are more likely to be stopped and searched than whites. In 1999 the Home Secretary ordered the police to recruit 8,000 officers from ethnic minorities within 10 years. In response the London Metropolitan Police increased recruitment of minority officers and hired additional recruits in 1999, which brought the total number of minority officers to less than 4 percent of the force. However, one-third of UK police forces have recruited no additional minorities.

The armed forces have a procedure to handle complaints of harassment, racial and otherwise. Service personnel also have the right to submit complaints to employment tribunals. In 1998 the services entered into a 5-year partnership agreement with the Commission on Racial Equality (CRE) to promote racial equality practices. During the year, the armed forces registered 77 internal harassment complaints, including 28 for sexual harassment, 9 for racial harassment, and 31 for bullying or other harassment.

Both loyalist and republican paramilitary groups in Northern Ireland continued to intimidate or carry out "punishment" attacks on victims who live in areas under

paramilitary influence. The attacks often are intended to maintain or extend the control of paramilitary groups in a given region. Targets include group members who have broken ranks or individuals accused of "antisocial" activities such as drug trafficking or carjacking. The attackers have used iron pipes, baseball bats, sledgehammers, and spiked clubs to beat their victims and shot them in the knees and legs. The authorities recorded over 200 such incidents during the year. Human rights groups say that available statistics underreport the true number of casualties because many of the victims are too intimidated to report paramilitary punishment attacks.

A bomb damaged Hammersmith Bridge in London in June. In September terrorists fired a missile, believed to be a rocket propelled grenade, at the MI-6 building, headquarters of Britain's Secret Service. Neither attack resulted in injuries, and no one publicly claimed responsibility.

Prison conditions generally met minimum international standards. The chief inspector of prisons' annual report expressed disappointment that prison management had failed to recognize and eliminate problems independently or to followup on negative reports in previous years. The inspector described the treatment of prisoners and the conditions in several prisons as unacceptable, but noted some improvements in other institutions. The Prison Service made attempts to correct the problems of overcrowding and poor facilities maintenance in its prisons, through an investment of some \$1.72 million (1.1 million pounds) in maintenance projects during the 1999-2000 period and a reduction in the number of prisoners required to "double up" in cells through the addition of 500 new places. In August the deputy governor at Feltham, a juvenile prison, resigned in protest over what he termed dangerous and antisocial conditions. An October Prison Service report criticized procedural failures

at Felham in the case of Zahid Mubarek, an Asian man who was beaten to death by a fellow inmate, Robin Stewart. Stewart had been charged with racially motivated crimes and continued to write racist letters from prison, but nonetheless was housed in the same cell with Mubarek. In August four warders at the Portland Young Offenders Institute were suspended from their duties pending investigation of allegations of abuse over a 14 year period. The prison population in England and Wales as of December decreased by 2 percent over the same time the previous year from 65,279 inmates to 63,881.

Prison suicides decreased during the last year. The Prison Service reported 139 deaths of prisoners in England and Wales during the year, compared with 148 such deaths in 1999. Of these deaths, 82 were self-inflicted (91 in 1999) and 54 were due to natural causes (57 in 1999). The Scottish prison service reported 19 deaths in custody in 2000: The causes of 13 were unresolved pending the results of routine inquests, 5 were suicides, and 1 was due to natural causes.

Human rights groups have been particularly critical of Special Security Units (SSU's), which are used to hold prisoners deemed to pose an exceptional risk of escape. Citing small group isolation, the lack of adequate exercise, work, educational opportunities, and natural daylight, as well as strict enforcement of noncontact visits through a glass barrier, human rights groups maintain that SSU imprisonment violates international standards. At year's end, 7 prisoners remained in SSU's; none was imprisoned for Northern Ireland terrorist-related crimes.

Separate and distinct prison regimes exist for Northern Ireland and Scotland, administered through the Northern Ireland Office and the Scottish Office.

The number of female prisoners continued to rise. According to a 1999 Home Office report, women now commit 20 percent of all crime, and the number of women sent to prison doubled in the previous 6 years. Implementing the recommendations of a 1999 report by its women's policy group, the Prison Service adopted new procedures governing admission to mother and baby units and standards for their management.

Faced with a large increase in the number of asylum seekers, the Government in December housed 1,195 immigration detainees in regular prisons, where normally they are held separately from convicted prisoners and prisoners awaiting trial. According to human rights groups, 28 regular prisons house some immigration detainees. The U.N. High Commissioner for Refugees (UNHCR) and other groups cite a lack of specialized skills among regular prison officials in dealing with immigration detainees. The UNHCR, which regularly visits detention centers and has excellent relations with the Government and detention center officials, continues to criticize the Government's "expectation of noncompliance" by asylum seekers. In March the Government opened a new center to house asylum seekers for short periods while their cases are decided. The Home Office was also in the process of finalizing rules for the treatment of asylum seekers in detention centers, which has been called for by the chief inspector for prisons for England and Wales.

The Prison Service stated that three prisoners were convicted in 1999 of offenses related to the situation in Northern Ireland. The requests by all three for repatriation to the Republic of Ireland remained under consideration. Since the prisoners committed their offenses after the signing of the Good Friday Agreement, they are not covered by its provisions for the early release of prisoners.

The Government permits human rights monitors to visit prisons and immigration detention centers.

d. Arbitrary Arrest, Detention, or Exile

The authorities can and often do make arrests or detain suspects without judicial warrants, especially in Northern Ireland, when they believe that they have reasonable cause to suspect wrongdoing. The 1994 Criminal Justice and Public Order Act allows police officers to stop and search vehicles and pedestrians if a police officer of at least superintendent rank (or a chief inspector if no superintendent is available) "reasonably believes" it is expedient to do so to prevent acts of violence. The authorization is limited to a 24-hour period but is renewable under certain circumstances.

In July Parliament enacted the 2000 Terrorism Act, which is scheduled to come into force in February 2001. The law reforms mechanisms and powers used to deal with terrorism relating to Northern Ireland and extends them to all forms of domestic and foreign terrorism across the United Kingdom. It replaces the Prevention of Terrorism (Temporary Provisions) Act of 1989, the Northern Ireland (Emergency Provisions) Act of 1996 (Amended in 1998), and sections of the Criminal Justice (Terrorism and Conspiracy) Act of 1998, incorporating many provisions of those acts into the new law. Certain other provisions of those laws, applicable only to Northern Ireland, are to be extended for a maximum of 5 years, based on the special security situation that continues to exist there.

The new act widens the definition of terrorism to include actions or threats of action that are designed to influence the Government or intimidate the public to advance a political, religious, or ideological cause that involves serious violence against a person or serious damage to property, endangers a person's life, creates a serious risk to

the health or safety of the public, or is designed to seriously interfere with an electronic system. It gives police the power to arrest and detain suspected terrorists for up to 48 hours without judicial review, or, under limited circumstances, legal representation. Under the law, the Government may ban organizations involved with any form of international or domestic terrorism and prosecute individuals who participate in or support such organizations. The law also enhances the Government's power to seize assets related to terrorist activities.

The act also provides for special emergency powers applicable to Northern Ireland for a period of up to 5 years maximum--or less if the Secretary of State for Northern Ireland determines that the security situation allows it. These powers include special entry, arrest, search, and seizure authority without a warrant under certain circumstances, nonjury, single-judge "Diplock Court" trials for "scheduled" offenses, and a lower standard of admissibility of confessions than in ordinary courts.

Human rights groups, including Amnesty International, have expressed objections over certain temporary and permanent provisions of the new act. These objections focus on the broad definition of terrorism employed in the law, the proscriptive powers of the state, and the powers of arrest, detention, and interrogation. They argue that the act effectively reverses the burden of proof in suspected terrorism cases and fails to provide adequate safeguards against abuse by law enforcement officials.

Suspects arrested without warrants must be released within 24 hours (or 36 hours if a serious offense is involved) unless brought before a magistrates' court or arrested under Terrorism Act provisions. The court may authorize extension of detention by 36 hours and on further application by another 24 hours, versus the 48-hour scheme extant in Northern Ireland (see Section 1.e.).

Defendants awaiting trial have a statutory right to bail unless there is a risk that they would flee, commit an offense, interfere with witnesses, or otherwise obstruct the course of justice, or unless they were on bail when the alleged offense was committed. Defendants who are remanded in custody are protected by statutory custody time limits, which restrict the period for which they can be held while awaiting trial to a maximum of 182 days, unless the court grants an extension. According to data supplied by the Home Office, at year's end 6,791 defendants were in custody awaiting trial. Of those in custody, 6,094 had been awaiting trial for less than 24 weeks, while 196 had been waiting longer than 48 weeks. On balance the time spent awaiting trial decreased from 1999. The 1998 Crime and Disorder Act includes measures to reduce delays in criminal proceedings by introducing procedural reforms and further limiting the time allowed for the prosecution of cases.

The law gives administrative detention power to immigration officers. There is no time limit to such detention and no right to have it reviewed by a court. At year's end, approximately 1,500 asylum seekers were detained. They are detained either in immigration detention centers or in regular prisons (where they are normally held separately from convicted prisoners and those awaiting trial). Occasionally they are held in police cells, if for no more than 48 hours and pending removal from the country or transfer to another accommodation (see Section 1.c.).

Unlike those accused of criminal offenses, asylum seekers are given no written statement about why they were detained, although the practice is to provide them with updates on the status of their claims and the time required for their adjudication. Asylum seekers do not have an automatic right to apply for bail, and bail application,

which can be made to immigration appellate authorities, requires a relatively high level of surety.

The Government does not use exile (also see Section 2.d.).

Paramilitary organizations in Northern Ireland also continued to threaten individuals and families to compel them to leave the province. Estimates of the number of people who fled into exile since the signing of the Good Friday Agreement in 1998 range as high as 800.

e. Denial of Fair Public Trial

The judiciary is independent and provides citizens with a generally fair and efficient judicial process.

There are several levels of courts. The vast majority of criminal cases are heard by magistrates' courts, which are managed by locally based committees. Their decisions may be appealed to the Crown Court, which also hears criminal cases requiring a jury trial, or to the High Court. Crown Court convictions may be appealed to the Court of Appeal, which may in turn refer cases involving points of law to the House of Lords. The Appellate Committee of the House of Lords (which consists of senior judges and is functionally distinct from the legislative arm) is the final court of appeal. The Criminal Cases Review Commission (CCRC) operates as an additional appellate body to investigate suspected miscarriages of justice in England, Wales, and Northern Ireland. It considers cases after the judicial appeals process is exhausted and where there is significant new evidence that casts doubt on the conviction. In Scotland similar appeals may be made to the Scottish Office.

The law provides for a fair trial, and the authorities respect and enforce the law in this regard. Defendants enjoy a presumption of innocence until proven guilty, the right to

question witnesses against them, and the right to appeal to successively higher courts.

The 1998 Human Rights Act took effect in October, bringing the European Convention on Human Rights into British Law (see Section 4). Under this law, all public bodies must act in a manner compatible with the convention. The law provides citizens with the right to take alleged violations of the convention by a public authority into British courts. The Government derogated from Article 5(3) of the convention, dealing with the prompt resolution of a case after arrest or detention and included this derogation in the Human Rights Act. NGO's criticize this derogation.

In July Parliament passed the 2000 Terrorism Act, which replaced several other related laws (see Section 1.d.). Under the new law, the testimony of a senior police officer, corroborated by a suspect's silence under questioning, can be considered evidence of a suspect's membership in a terrorist organization. The act also criminalizes membership in a proscribed terrorist organization or the support of such an organization, including the provision of money or other property. The act allows for the seizure and forfeiture of assets belonging to a person convicted of fundraising or otherwise assisting or supplying property to be used for the purposes of terrorism. Human rights groups, including Liberty, have criticized the criminalization of membership in a terrorist organization as violating the right to freedom of expression and association.

Under the 1994 Criminal Justice and Public Order Act, judges have the power to instruct juries that they may draw an inference of guilt from a defendant's refusal to answer questions during interrogation or trial, although no conviction can be based solely on such an inference. Human rights groups and the U.N. Human Rights

Committee sharply criticize this provision, which they consider an abrogation of the right against self-incrimination. A similar provision is in effect in Northern Ireland. Based on a 1996 European Court of Human Rights judgment, the 1999 Criminal Evidence (Northern Ireland) Order codifies guidelines issued by the Attorney General that prohibited the drawing of inference from silence when a suspect is questioned before being permitted access to an attorney.

Indigent defenders have the right to free counsel of their choice, with some exceptions. Criminal proceedings must be held in public except those in juvenile court and those involving public decency or security. In a trial under the Official Secrets Act, the judge may order the court closed, but sentencing must be public.

In Northern Ireland, special "emergency" restrictions affect due process. The 2000 Terrorism Act extends the application of most provisions of the 1991 Northern Ireland Emergency Provisions Act (EPA) for a year, subject to another 12-month extension. Trials for certain terrorist-related offenses are conducted automatically in "Diplock courts" without a jury unless they specifically are "scheduled out" to ordinary jury courts. Diplock courts were established to avoid cases being heard by juries that might make decisions along sectarian lines, as well as to protect jurors from intimidation. If judges decide to convict, they must justify the decision in a document that becomes part of the court record. An appellate court may overturn the decision on either factual or legal grounds. During the year, 89 persons were tried in Diplock courts, of whom 39 either pled or were found guilty. An internal review of the Diplock court system was completed in July. It concluded that, due to the risk of juror intimidation, the time was not yet right to achieve the Government's objective of resuming jury trials for all offenses. The Government accepted this conclusion. The Diplock courts,

and the Government's latest decision to retain them, have been criticized widely by human rights groups.

Provisions of the EPA extended under the Terrorism Act establish lower standards for the use of uncorroborated confessions in Northern Ireland than in normal cases, and such confessions have in the past been used as the sole basis for conviction. Additionally, these provisions permit the police to prevent any suspected terrorist from contacting legal counsel for up to 48 hours after arrest under certain circumstances, at the request of a police officer with the minimum rank of superintendent. After a detainee has asked to see a lawyer and has done so, this period is renewable in subsequent 48-hour increments until the detainee is charged or released. Human rights groups have criticized these provisions, arguing that a detainee is most likely to need counsel in the first few hours; lack of counsel during that time makes false or coerced confessions and the abuse of detainees more likely. According to the Northern Ireland office, 92 requests for access to lawyers were made through June, none of which were delayed.

The 1996 Criminal Procedures and Investigations Act reduced defense lawyers' access to potential evidence held by the prosecution, including information as to how the evidence was collected. According to the Committee on the Administration of Justice, a local NGO, this practice may be contrary to U.N. guidelines on the role of prosecutors.

In light of allegations of security force collusion in the killings of Patrick Finucane and Rosemary Nelson (see Section 1.a.), there is continuing concern about harassment of lawyers by members of the RUC. The Human Rights Commission and the Law Society (the solicitors' professional association) received complaints from attorneys during the year and were considering undertaking a study to assess the full extent of the

problem, since there is evidence that the number of incidents is underreported. The RUC maintains that it has zero tolerance for misbehavior toward attorneys and specifically has addressed the issue in its new code of ethics.

In March a nine-member panel of legal professionals, drawn from the civil service and private practice, issued the Northern Ireland Criminal Justice Review, which was mandated by the Good Friday Agreement. The review's 294 recommendations are intended to improve the criminal justice system so that it will enjoy the confidence of all parts of the community while delivering justice efficiently and effectively. The report recommends the creation of a single independent prosecuting authority called the Public Prosecution Service for Northern Ireland that would be responsible for all prosecutions, including minor offences that are now prosecuted by the police. The review also recommends creation of a nonpolitical Northern Ireland Attorney General to oversee the Prosecution Service. It calls for the establishment of a single minister-level Department of Justice once responsibility for justice is devolved to Northern Ireland. To ensure that judicial appointments faithfully reflect the composition of Northern Ireland society, the review recommends the establishment of a Judicial Appointments Commission, which would include input from the First Minister and Deputy First Minister, to introduce local political responsibility and accountability into the appointments process. The review also makes recommendations on restorative justice, juvenile justice, community safety, victims and witnesses, and sentencing and prisons.

During a 6-month consultation period ending in September, the Government accepted comments on the review from human rights NGO's and political parties. In October the Government stated that it fully endorses the

general approach taken in the report. Legislation is expected in 2001.

In accordance with the Good Friday Agreement, the Government concluded the process of releasing prisoners affiliated with paramilitary organizations that maintained a cease-fire. By year's end, 433 paramilitary prisoners, including 229 republicans and 193 loyalists (and 11 "others") had been released under the 1998 Northern Ireland (Sentences) Act, commonly referred to as the early release program.

There were no reports of political prisoners.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

Warrants normally are required for a police search of private premises; however, under the 2000 Terrorism Act a police officer may enter and search "any premises if he or she reasonably suspects a terrorist is to be found there." The Government compensates persons whose houses or property have been damaged during house searches.

In July the Regulation of Investigatory Powers Act (RIPA) became law. The RIPA allows the Government to monitor the content of private electronic communications after obtaining a warrant. In addition law enforcement agencies may require individuals and businesses to disclose encryption keys under certain circumstances. In October the Government enacted regulations under the RIPA allowing businesses to monitor the electronic communications of employees. The regulations are expected to be challenged under the Human Rights Act.

In Northern Ireland, paramilitary attacks on the homes and families of police and politicians decreased significantly, but the security forces believe that such

groups continue to conduct surveillance and retain the capability to target police and politicians.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

Strongly held common-law tradition, an independent press, and a democratic political system combine to secure freedom of speech and of the press. Viewpoints critical of the Government are well represented.

The print media are dominated by a handful of national daily newspapers, all privately owned and independent (although often generally aligned with a political party). About half of the electronic media are run by the British Broadcasting Corporation (BBC), which is funded by the Government but enjoys complete editorial independence. Corporations under renewable government license run the remainder.

In May Barry Michael George was charged with the 1999 murder of Jill Dando, a leading television personality. George, whose trial was scheduled for February 2001, was believed to have been obsessed with Dando.

Press organizations and human rights groups continued to criticize the 1981 Contempt of Court Act, which allows courts to order a journalist to disclose a source if it is deemed to be in the interests of justice. The 1984 Police and Criminal Evidence Act also contains provisions that compel journalists to give evidence in cases where police can prove it is necessary to their investigation. The Official Secrets Act, another law cited by journalists as unduly restrictive, prohibits the defense that the information is already in the public domain or that its publication is in the public interest.

In November Parliament passed the Freedom of Information Act (FIA). The FIA provides for public access to information held by the government. Certain information, including information related to the Security Service and Secret Intelligence Service, is subject to an absolute exemption from disclosure. In addition, the Government may refuse to disclose other "exempt" information, including information relating to national security and the operation of any ministerial private office, if the public interest in maintaining the exemption outweighs the public interest in disclosure. Critics, including the NGO Campaign for Freedom of Information, charge that the exemptions are overly broad.

Academic freedom is respected.

b. Freedom of Peaceful Assembly and Association

The law provides for the right of peaceful assembly, but that right is limited routinely where it would impose a cost on public convenience. Police dispersed a May 1 anticapitalist demonstration in London after participants rioted, stoned police, and damaged cars and businesses. Several persons were injured, and a number of protesters arrested.

In Northern Ireland the annual "marching season" posed significant problems for the Government since the right of assembly conflicted with the concerns of local residents in some communities who perceived the parades as the celebration of Protestant "triumphs" in historical battles. The 1998 Public Processions (Northern Ireland) Act transferred responsibility for ruling on disputed marches from the RUC to a Parades Commission. Of the 3,304 parades held during the year, 260 were considered contentious. Of these the Parades Commission imposed restrictions on 188. The courts refused the Orange Order's bid for a judicial review of the act. The Orange Order

claimed that the law's provisions violated the Human Rights Act's provisions for freedom of speech and assembly.

In response to the Parades Commission's decisions in June and July not to allow the Orange Order parade down the nationalist Garvaghy Road in Portadown, the Orange Order called for widespread protests throughout Northern Ireland. Loyalist demonstrators blocked streets, and some hijacked and burned cars; the protests caused widespread disruption, and businesses were forced to close early. The two parades at Drumcree on July 2 and 9 took place relatively peacefully amid a massive security presence, but on several intervening evenings loyalist protesters on Drumcree Hill became violent and attacked police and army security forces. The Portadown Orange Lodge called for peaceful protests but did not condemn the violence. The Apprentice Boys' Siege of Derry parade on August 12 largely was peaceful.

The law provides for freedom of association, but that right is sometimes limited. Under the 2000 Terrorism Act, it is an offense, punishable by up to 10 years' imprisonment, to belong to or profess to belong to an organization proscribed by the Home Secretary. Individuals are also subject to prosecution for supporting or inviting support for a proscribed organization, arranging or addressing meetings by proscribed organizations, or wearing clothing or carrying or displaying articles that would reasonably arouse suspicion of membership in a proscribed organization. Amnesty International has expressed concern that these powers may infringe on the rights to freedom of association and expression.

c. Freedom of Religion

Government policy provides for freedom of religion, and the Government generally respects this right in practice.

Members of all faiths and denominations enjoy freedom of worship. The Human Rights Act prohibits discrimination on the basis of religion. Those who believe that their freedom to worship has been abrogated have the right to appeal to the courts for relief. The Church of England (Anglican) and the Church of Scotland (Presbyterian) have the status of state religions, although their status has come under increasing scrutiny. A January university report on religious discrimination commissioned by the Home Office claimed that the establishment of the Church of England causes "religious disadvantage" to other religious communities. The Home Office at year's end still was considering the report.

The Church of Scientology asserts that it faces discrimination because the Government does not treat Scientology as a religion. Ministers of Scientology are not regarded as ministers of religion under prison regulations or for immigration purposes. In 1999 the independent Charity Commission rejected a Church of Scientology application for charitable tax status accorded to most religious groups, and concluded that it is not a religion for the purposes of charity law.

The 1988 Education Reform Act requires that government schools hold a daily act of nondenominational Christian worship. A parental right of withdrawal exists for children who do not wish to participate, and safeguards exist for teachers who do not wish to participate in or conduct religious education. The act provides for alternative collective worship for other faiths. Teachers' organizations have called for government review of the act. Some "voluntary schools" provided by religious groups enjoy state support. While the majority of these schools are Anglican or Catholic, there are a small number of Methodist and Jewish schools.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

Citizens enjoy freedom of movement within the country and in foreign travel, emigration, and repatriation. In 1997 the Home Secretary revoked all exclusion orders preventing individuals linked to terrorism in Northern Ireland from traveling to Great Britain. When the Prevention of Terrorism Act was renewed in 1998, it did not include provisions for exclusion orders. However, the Home Secretary has the power to activate other statutes implementing exclusion orders at any time.

The Government cooperates closely with the UNHCR and other humanitarian organizations in assisting refugees. First asylum is provided under a temporary protection process. Applicants are given 6 months' "leave to enter the country" on arrival. They then can apply for an automatic 3-year extension of their stay and may apply for refugee status at any time. Asylum applications are considered in accordance with the criteria set out in the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol. Some asylum seekers are detained while the Government reviews their cases (see Section 1.d.); some are detained in regular prisons (see Section 1.c.).

Faced with growing numbers of asylum applicants, the Government passed legislation in 1996 and 1999 designed to deter illegal entrants and the abuse of the asylum process, streamline the appeals process, and restrict benefits provided to asylum seekers. In December the Government issued guidelines for use by the courts in considering asylum claims by women. Judges were urged to consider forms of persecution more likely to be faced by female asylum applicants, including female genital mutilation and forced prostitution. The Government's policy, and the 1999 Immigration and Asylum Act in particular, have been criticized by the UNHCR and NGO's

for being detrimental to refugee rights. In particular Amnesty International in a September report claims that the Government's practice of dispersing asylum seekers throughout the county and issuing them vouchers for the purchase of food and other items stigmatizes asylum seekers and denies them access to community services.

At year's end, 66,195 asylum applications were outstanding, compared with 101,475 outstanding a year earlier. The Government decided on 110,065 initial asylum applications, granting asylum in 10,185. Under a special program to clear the asylum backlog, the Government also granted leave to remain in 10,330 cases. An additional 11,365 cases were refused asylum, but were granted "exceptional leave to remain."

There were no reports that persons were forced to return to countries where they feared persecution.

Feuding among loyalist paramilitary groups resulted in the expulsion of over 200 families from their homes in the Shankill region of West Belfast as each group sought to expel from the neighborhood families allegedly sympathetic to their rivals. This scale of violent eviction had not been experienced in Northern Ireland since 1972.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

Citizens have the right to change their government and freely exercise that right. The lower chamber of Parliament (the House of Commons, the center of legislative power) is elected in periodic, multiparty elections. The upper chamber (the House of Lords), with the power to revise and delay implementation of laws, is made up of hereditary and appointed life peers and senior clergy of the established Church of England. In the first stage of a government reform program, the House of Lords agreed in 1999 to remove all but 92 of its over 900 hereditary peers

who, with approximately 500 life peers and 26 clergy, make up the current House of Lords. Possible additional reforms are being debated, which would further reduce the size of the chamber, democratize selection of members, and add representatives of faiths other than Anglicanism as *de jure* members.

The Government is formed on the basis of a majority of seats in the House of Commons, which are contested in elections held at least every 5 years. Participation in the political process is open to all persons and parties. All citizens 18 years of age and older may vote. As in the rest of the country, Northern Ireland has city and district councils but with fewer powers. England and Wales also have County Councils. The Northern Ireland Assembly, the Scottish Parliament, and the Welsh Assembly have control over matters of regional importance, such as education, health, and some economic matters. Foreign affairs and defense continue to be the responsibility of the central government.

Due to continuing problems with the decommissioning of paramilitary weapons, the Northern Ireland Assembly and Executive (established under the terms of the Good Friday Agreement) were suspended in February. The institutions were restored in May following intensive British-Irish talks with the parties and an initiative on weapons by the IRA.

The small number of remaining UK overseas territories have an aggregate population of approximately 190,000. They enjoy varying degrees of self-government on the British model, with appointed governors.

Women are underrepresented in government and politics, although they and minorities face no legal constraints on voting or holding office. Women constitute 18 percent of the members of the House of Commons and approximately 16 percent of those in the House of Lords. Some 28

Members of Parliament have identified themselves as members of minority ethnic groups.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A wide variety of human rights groups operate without government restriction, investigating and publishing their findings on human rights cases. Government officials generally are cooperative and responsive to their views.

A number of international nongovernmental human rights organizations, including Amnesty International and Human Rights Watch, are based in the country. The Government cooperates fully with international inquiries into alleged violations of human rights.

The 1998 Human Rights Act, which incorporated the provisions of the European Convention on Human Rights into domestic law, took effect in October 2000 for the entire United Kingdom. Proceedings under the Human Rights Act can be brought only by victims of a breach of convention rights by a public authority. The Home Office has a human rights unit to carry out human rights policy and legislation. NGO's have criticized the Government for its failure to create a government-wide Human Rights Commission. In Northern Ireland the Human Rights Commission was established as an outcome of the peace process. While cases still may be taken to the European Court of Human Rights, all domestic remedies under the 1998 act must be exhausted first.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The 1976 Race Relations Act prohibits discrimination on the basis of race, color, nationality, or national or ethnic origin and outlaws incitement to racial hatred. These

protections were extended to Northern Ireland in 1997. However, some groups continued to experience official and societal discrimination.

The Human Rights Act prohibits discrimination on the basis of religion by public authorities. Employment discrimination on the grounds of religious or political opinion was outlawed specifically in Northern Ireland by the Fair Employment Act. The 1998 Fair Employment and Treatment Order extended the prohibition on discrimination to the provision of goods, facilities, services, and premises. The Government respects and enforces all antidiscrimination laws, which concentrate on employment and the supply of goods and services. The Northern Ireland Equality Commission began operation in August 2000 to oversee antidiscrimination policy.

Women

Violence against women continues to be a problem. In 1999 a government report, "Living Without Fear," indicated that one in four women experience domestic violence at some stage in their lives, that reported incidents of rape more than tripled over the past 10 years, that two women per week are killed by their current or former partners, and that women fear personal attack more than any other crime. According to a February 2000 Home Office study, the 6,000 rapes and 17,5000 indecent assaults recorded by the police yearly vastly underreport of the real scale of sexual violence against women. The study estimates the true number of rapes and assaults at between 118,000 and 295,000. The research was released as part of a package of government grants and projects aimed at improving the conviction rate for rape and providing women with better protection against domestic violence. Reports of violence against women in Northern Ireland have increased.

Criminal penalties for rape, including spousal rape, sexual assault, and domestic violence are substantial, and these laws are enforced strictly; however, conviction rates for rape tend to be lower than for other crimes. In the 12 months ending in September, 37,263 sexual offences were recorded in England and Wales, a decrease of 0.4 percent over the same period in 1999. The law provides for injunctive relief, personal protection orders, and protective exclusion orders (similar to restraining orders) for women who are victims of violence. The Government provides shelters, counseling, and other assistance for battery or rape and offers free legal aid to battered women who are economically reliant on their abusers.

Criminal action for sexual harassment cases must be prosecuted under assault legislation since no law specifically prohibits sexual harassment. Women's groups have complained that civil suits concerning sexual harassment and discrimination on the basis of gender sometimes take up to 31/2 years to appear before an industrial tribunal.

The law provides for equal opportunity between the sexes, but women experience some discrimination in practice. The 1975 Sex Discrimination Act, as amended in 1986, prohibits both direct and indirect discrimination in training, housing, and the provision of goods and services, as well as in employment. Women have equal rights regarding property and divorce. According to the Government's Equal Opportunities Commission (which supports persons who bring discrimination cases before industrial tribunals and courts and produces guidelines on good practice for employers), significant progress has been made towards equal opportunity for women since the commission was established in 1975. The introduction of the national minimum wage in 1999 was an important change in the effort to equalize pay. However, a February report for the Government's Women's Unit found that

women in full-time work earn on average 84 percent of the earnings of male full-time workers

Trafficking in women is a growing problem (see Section 6.f.).

Women's issues within the Government are represented at the cabinet level by the Minister for Women, who heads up the Women's Unit, which engages in dialog with women and advises the Government but has no authority for direct action.

Children

The Government demonstrates its strong commitment to children's rights and welfare through its systems of public education and medical care. The Government provides free, compulsory education to age 16 and further education to age 18 if the student so desires.

While there is no societal pattern of abuse directed against children, indications are, despite a lack of reliable data, that child abuse is nevertheless a problem. Since the paramilitary cease-fires, reports of violence against children in Northern Ireland have increased.

Concern and publicity surrounding pedophiles is growing. As part of a government drive to protect the young from child abusers, previously secret registers of pedophiles are available to any employer who runs an organization where persons under age 18 could be at risk (schools, children's homes, or voluntary organizations). In addition suspected child abusers and convicted pedophiles are banned from working with children. Childcare organizations must consult a list before offering anyone a job, paid or otherwise, and it is illegal for them to hire anyone named on it.

Various laws covering England and Wales stipulate that children have the right to apply for court orders, to give or withhold consent for medical treatment (for those capable of making an informed decision), to make complaints to the relevant local authority, to have their ethnic, linguistic, and religious background considered in decisions affecting them, to have reasonable contact with their families (usually applied in a circumstance where there was abuse), and in general to be consulted regarding their desires.

In February rules were introduced in England and Wales to reduce the intimidation that young suspects may feel when tried in an adult court. The rules include a ban on robes and wigs and uniformed security officers in the courtroom and affect all defendants under age 18 who face serious criminal charges in crown courts. The changes were in response to a 1999 European Court of Human Rights ruling that two young boys' rights were violated by the intimidating nature of their trial.

Under the Prevention of Terrorism Act, the police can arrest and detain children as young as 10 years old for up to 7 days.

In January the Government published a consultation document proposing that laws be amended to make it illegal for parents to hit their children with an implement or hit them on the head or face. It did not propose to outlaw completely spanking or hitting. The proposals are the result of a European Court of Human Rights ruling in 1998 that a 9-year-old boy's rights were violated by his stepfather's caning. The 1998 School Standards and Framework Act extended the ban on corporal punishment in state schools to private schools and nursery schools. Child welfare groups have called for all corporal punishment of children to be outlawed.

Female genital mutilation, which is widely condemned by international health experts as damaging to both physical and psychological health and has been illegal in the United Kingdom since 1985, is practiced by immigrant populations from countries in which the practice is common. The extent to which the procedure is carried out in the UK is unknown, but the Government continues to work to eradicate it.

People with Disabilities

The 1995 People With Disabilities Discrimination Act outlaws discrimination against disabled persons in the provision of access to public facilities by employers of more than 15 workers, service providers (apart from those providing education or running transport vehicles), and anyone selling or renting property. In addition all businesses are required to accommodate disabled customers. Adaptations must be "reasonable," bearing in mind the circumstances and size of the business. The 1993 Education Act requires local education authorities to make provision for the special educational needs of disabled children.

In April the Disability Rights Commission (DRC) was launched. The DRC provides a hot line for disabled people and employers, legal advice and support for individuals, and policy advice to the Government. The DRC also has the power to conduct formal investigations, arrange conciliation, require persons to adopt action plans to ensure compliance with law, and apply for injunctions to prevent acts of unlawful discrimination.

Government regulations require that all new buildings meet the access requirements of all persons with impaired mobility and that all taxis be wheelchair accessible. In 1992 the Government promulgated similar regulations for sensory-impaired persons. However, while generally

improved, access to many buildings, especially older buildings, including transportation centers, remains inadequate.

Religious Minorities

According to the NGO the Board of Deputies of British Jews, the number of anti-Semitic incidents in Britain during the year was 398, compared with 270 in 1999 (adjusted figure). Public manifestations of anti-Semitism are confined largely to the political fringe, either far right or Islamist. In reaction to the October violence in the West Bank and Gaza, a number of synagogues were attacked by persons throwing bricks or other objects through the windows and anti-Semitic leaflets were posted in Manchester, Birmingham, and London. A Jewish man was stabbed in London in October in an apparent racist attack.

Although there is some evidence that unemployment rates among Catholics remain higher than among Protestants in Northern Ireland, government programs and continued economic growth in the region have resulted in a decrease in the overall unemployment rate.

The 1989 Fair Employment (Northern Ireland) Act, as amended, aims to end even unintentional or indirect discrimination in the workplace, and a public tribunal adjudicates complaints. All public sector employers and all private firms with over 10 workers must report annually to the Equality Commission on the religious composition of their work force and must review their employment practices at least once every 3 years. Noncompliance can bring criminal penalties and the loss of government contracts. Victims of employment discrimination may sue for damages. Although critics of the act assert that its targets and timetables are too imprecise, most leaders of the Catholic community regard it as a positive step.

While the active recruitment of Catholics by the Northern Ireland Civil Service produced rough proportionality in overall numbers, the service acknowledges that Catholics remain significantly underrepresented in its senior grades. Government efforts to increase the recruitment of Catholics into the police (currently 92 percent Protestant) and related security jobs in Northern Ireland have been hampered by widespread antipathy in the Catholic community to the security forces as well as by intimidation by republican organizations opposed to any cooperation with the police or security forces. Despite past efforts, the percentage of Catholic officers in the force has not changed significantly. The new policing bill mandates that a 50:50 religious balance be maintained in new recruitment until the religious composition of the police reflects the mix in society at large. Critics of this approach contend that it will violate the UK's international commitments.

The fear of intercommunal violence has, over the years, led to a pattern of segregated communities in Northern Ireland. Protestant and Catholic families have moved away from mixed or border neighborhoods.

According to the RUC, there were 28 arson/bomb attacks and 3 other acts of violence directed at both Protestant and Catholic churches in Northern Ireland during the year.

National/Racial/Ethnic Minorities

Despite legal prohibitions against race discrimination, persons of African and Afro-Caribbean, South Asian, or Middle Eastern origin and Travellers face occasional acts of societal violence and some discrimination. According to an official report in October, 21,700 racially related offenses were recorded in the 1999-2000 period. Incitement to racial hatred is a criminal offense punishable by a maximum of 2 years' imprisonment. The Government strictly enforces the laws and regulations in this area.

In June David Copeland was convicted of a series of racially motivated bombings in London that killed three people (see Section 1.a.). In November Robert Stewart, an inmate at the Feltham young offender institution, was convicted of the March murder of his Asian cellmate, Zahid Mubarek. Prior to the commission of the murder, Stewart had been charged with racially motivated offenses, and had written a number of racist letters while in prison (see Section 1.c.).

The government-appointed but independent Commission for Racial Equality provides guidelines on good practice, supports persons taking court action under the 1976 Race Relations Act, and may initiate its own court actions. After investigating a complaint, the CRE may issue a notice requiring that the discrimination be stopped. The CRE then monitors the response to its notice for 5 years.

According to a February announcement by Scotland Yard, the number of black and Asian officers in the metropolitan police increased by 20 percent since the release of the Lawrence Report. However, minority officers still represent only about 4 percent of the metropolitan police force. More than one-third of police forces did not increase minority recruitment, the rate of which is substantially below the level required to meet targets set by the Home Office.

A series of reports in 1999 and 2000, both independent and commissioned by police, show that minorities are more likely to be stopped and searched by police than whites (see Section 1.c.).

In March the Police Complaints Authority announced that it would conduct a new inquiry into the police handling of the death of Ricky Reel, a young Asian found drowned in the Thames River in 1997. His family believes that Reel

was the victim of a racial attack and claim that police failed to investigate the crime properly.

Travellers, nomadic populations consisting of Roma, Irish, and "new" Travellers, estimated to number 100,000 persons, experience marginalization, educational discrimination, and police and societal harassment greater than that of the settled population, according to human rights groups. U.N. Committees on both the Rights of the Child and the Elimination of Racial Discrimination have expressed similar concerns. In August 1997, the Government passed the Race Relations (Northern Ireland) Order, which for the first time gave specific legal protection to minority ethnic groups there, including the Traveller community. In January a study by Dundee University revealed institutionalized racism towards the Scottish Traveller community. In particular it showed that racist and intolerant attitudes among health professionals prevented Travellers from receiving proper medical care.

Section 6 Worker Rights

a. The Right of Association

Workers have the right to form and join unions, and the Government respects this right in practice. The 1999 Employment Relations Act established the country's first procedures for statutory, as distinct from voluntary, union recognition. The Department of Trade and Industry began to promulgate implementing regulations during the summer of 2000. Additional regulations are being issued as they are completed. For example, beginning on September 4, 2000, workers are entitled to be accompanied at disciplinary and grievance hearings by a trade union representative--even if an employee's workplace is not unionized.

Unions are free of government control. The Employment Relations Act affords significant new protection to union

organizing efforts and, for the first time, confirms the statutory right to strike. The act sets minimum employment standards for the first time in labor law.

Unions participate freely in international organizations. The general secretary of the International Confederation of Trade Unions (ICTU), the general secretary of the Trade Union Advisory Committee to the Organization for Economic Cooperation and Development, and the workers' representative on the governing body of the International Labor Organization (ILO) are all former British trade union leaders.

b. The Right to Organize and Bargain Collectively

Collective bargaining is longstanding and widespread, covering about 30 percent of the work force. Unionization is heaviest in the public sector. Under the Employment Relations Act, labor-management contracts are, for the first time, legally enforceable.

Under the 1999 act, unions can file a request for recognition, identifying the proposed bargaining unit, to the Central Arbitration Committee (CAC). The act covers employers with more than 20 workers and encompasses an estimated two-thirds of all workplaces.

Once the CAC determines the appropriate bargaining unit, it assesses whether a union is likely to have majority support. If union members already make up a majority of the bargaining unit, the CAC can issue a declaration that the union is recognized for collective bargaining without a ballot. In those instances where the CAC orders a ballot (typically, when the majority of bargaining unit employees are not already union members), the employer must cooperate by providing a list of names and giving the union access to the workplace to campaign. Unions win recognition when a majority of those voting agree,

including at least 40 percent of those in the bargaining unit.

Although the law encourages voluntary agreements between employers and unions, the CAC can, if necessary, impose a legally binding procedure for bargaining about pay, hours, and holidays. To date no union has filed a case before the CAC. This reflects the Trades Union Council's (TUC) explicit preference that its member unions should secure workplace agreements through negotiation rather than in the courts. The TUC acknowledged that the right to take a unionization dispute to the CAC has boosted its organizing efforts.

Workers are protected against dismissal or other retaliation for campaigning or voting for or against recognition. Unions no longer are required to name members when initiating a strike ballot, to minimize opportunities for retaliation. The law also prohibits the compilation of lists of union members and labor activists for use by employers and employment agencies. This is aimed at "blacklists," as operated in the past. Dismissed strikers are able to claim unfair dismissal if fired within 8 weeks of when they first undertook a legal strike.

Union members are protected against "being subject to any detriment" due to union activity or membership. This protection goes further than the previous language of "action short of dismissal taken against him as an individual." Heretofore, it was legal for employers to withhold fringe benefits otherwise available to nonunion employees.

At the same time, the 1999 act retains key policies implemented by previous governments, notably ballots and notice before strikes, abolition of the closed shop, secondary boycotts, and prohibition against mass picketing.

There are no export processing zones. The Employment Relations Act also extends its protection to contract and part-time workers in an attempt to close loopholes that previously allowed some employers to evade labor regulations. Foreign workers are protected to the full extent of the law.

c. Prohibition of Forced or Compulsory Labor

Forced or compulsory labor, including that performed by children, is prohibited and is not practiced.

d. Status of Child Labor Practices and Minimum Age for Employment

School attendance until age 16 is compulsory. Children under age 16 are not permitted to work in an industrial enterprise except as part of an educational course. Forced and bonded child labor is prohibited, and the Government effectively enforces this prohibition (see Section 6.c.). The UK ratified ILO Convention 182 on the worst forms of child labor on March 23 and ILO Convention 138 on the minimum age for employment in June.

e. Acceptable Conditions of Work

The country's first minimum wage went into effect on April 1, 1999. As of October 1 the adult minimum wage was \$5.50 (₹3.70). The youth wage was raised to \$4.75 (₹3.20) on June 1, 2000.

When introduced in 1999, the new pay thresholds were expected to benefit some 1.5 million workers directly. However, according to government figures in October, nearly 300,000 workers still were paid less than the minimum wage a year after its introduction. Government departments aggressively are instructing employers that they must bring pay practices into compliance. The Board of Inland Revenue examined 7,000 employers by October

and had recovered \$4 million (2.7 million pounds) on behalf of underpaid employees.

Recognizing that the national minimum wage is a new institution, the Government asked the Low Pay Commission (incorporating academics, employers, and trade unions), created in 1998, to review the standard's implementation and make recommendations by July 2001.

Currently the national minimum wage, by itself, does not provide a decent standard of living for most workers with families. But other elements of the welfare state fill the gap. Of nearly 28 million workers, some 6 million (21 percent) benefit from some social insurance scheme or another. This is in addition to free universal access to the National Health Service. The working families' tax credit and disabled person's tax credit--both implemented as of 1999--are designed to ensure a working family a weekly income of \$320 (200 pounds), which constitutes a living wage.

As of April, the Government also introduced a minimum income guarantee for low-income pensioners. This increases the basic state pension that all retired employees receive. And the Government also announced that, as of April 2001 the threshold of total personal assets will be raised to allow more low-income pensioners to avail themselves of this benefit.

The Government introduced a working time directive in 1998 to bring domestic legislation into compliance with the European Union's 48-hour workweek. New 1999 legislation significantly raised the maximum compensation level for unfair dismissal claims from \$19,200 to \$80,000 (12,000 to 50,000 pounds). Regulations from 1999 enhanced parental leave provisions for employees with more than a year's continuous service. The Human Rights

Act, which came into force on October 2, 2000, added additional rights in the workplace.

The 1974 Health and Safety at Work Act stipulates that the health and safety of employees not be placed at risk. In practice the act is updated constantly. The Health and Safety Executive effectively enforces regulations on these matters and may initiate criminal proceedings in appropriate cases. Workers' representatives actively monitor enforcement of the act. Workers can remove themselves from hazardous conditions without risking loss of employment.

f. Trafficking in Persons

No laws specifically criminalize trafficking in persons, which is a growing problem. A July Home Office report on reforming the law on sexual offences recommended the creation of a new crime of trafficking a person for the purpose of sexual exploitation. The police successfully prosecuted traffickers under other laws, such as those against procuring and living off of immoral earnings. Under the 1999 Immigration and Asylum act, persons found importing illegal immigrants can be fined \$3,600 (2,000 pounds).

A May Home Office report on trafficking in women estimated that up to 1,400 women were trafficked into the country in 1998. The report highlighted that police largely are unaware of the scale of the problem and do not treat it as a priority. The Government was considering the report's recommendations, which include the creation of a new crime category of "sexual exploitation," allowing trafficked women to sue their exploiters, and a focus on prevention campaigns in host countries.

On June 21, 58 ethnic Chinese suffocated in the back of a truck while attempting to enter the country illegally. Three

persons were arrested and face trial in the UK in connection with the deaths.

[End.]